Coldharbour Provisions Transaction Evidence Bundle

Compiled for Inglewood Board | status as of May 13, 2026 | exhibit-indexed source record

Index

Exhibit	Record	Date / source
A	Executed Purchase Agreement abstract	Apr. 3, 2026
B	Owner priority and annex term sheet	May 8, 2026
C	Polar Mechanical refrigeration assessment	Apr. 24, 2026
D	Northline Roof Consulting report excerpt	Apr. 26, 2026
E	Buyer correspondence and call notes	May 4-12, 2026
F	Current authority record	May 13, 2026
G	Compliance routing note	May 12, 2026

Source-use note. This bundle combines transaction records and limited excerpts. It records what was said and reported; it does not determine legal responsibility, engineering scope, tax treatment, or lender approval.

EXHIBIT A | Executed Purchase Agreement Abstract

Property: Coldharbour Provisions cold-storage plant, 96,000 square feet, 1450 Coldharbour Road, Joliet, Illinois. Seller: Reina Whitcombe and Inglewood Board. Buyer: Underhill Solutions, Inc.. Purchase price: $18,400,000. Agreement signed April 3, 2026.

Term	Abstracted provision
Closing	Closing is scheduled for May 29, 2026, subject to written amendment signed by Seller and Buyer.
Inspection	Buyer inspection period expired May 1, 2026. Reports delivered during that period are not an agreement to repair or a seller warranty.
Changes	No change to price, credit, repair obligation, possession, or closing may be effective unless stated in a signed written amendment.
Release / survival	At closing, Buyer releases Seller from pre-closing property-condition claims except obligations expressly preserved in the closing documents. No condition warranty survives unless expressly written.
Closing documents	Any seller credit must be reflected in the closing statement and documented in the amendment; a purchase-price reduction changes the contract price.

EXHIBIT A-2 | Milestone sheet

Milestone	Date / time	Owner
Covering-broker call	Thursday, May 14, 2026, 10:00 a.m. CT	Eamon Kristiansen
Proposed package expiry	5:00 p.m. CT on Friday, May 15, 2026	If issued
1031 identification deadline	May 25, 2026	Reina / qualified intermediary
Scheduled closing	May 29, 2026	Seller / Buyer

The identification deadline is 11 calendar days after the May 14 call. The agreement does not make the 1031 exchange a Buyer contingency.

EXHIBIT B | Owner Priority Record and Annex Term Sheet

May 8 owner instruction from Reina Whitcombe to Arjun Fitzgerald: “The annex is how we keep receiving our last outbound orders. I need the 60 days after closing. I can trade money to protect that, but I will not close and then hope they let us use it.”

Inglewood Board minute: preserve uninterrupted post-closing loading-annex use ahead of headline-price preservation; no independent broker authority to waive, defer, or alter the annex arrangement.

Annex term	Agreed business instruction for proposed amendment
Space / period	east loading annex (approximately 8,000 square feet); May 30, 2026 through July 28, 2026 (60 days).
Access	Seller personnel and carriers retain 24/7 dock and truck-court access through the east gate; Buyer may reasonably coordinate safety and site rules.
Operations / cost	Seller operates only the annex, pays its own labor, utilities measured to the annex submeter, and routine cleanup. No rent is charged for the 60-day period.
Insurance / risk	Seller maintains commercial general liability and workers compensation for its operations and is responsible for loss caused by its personnel; Buyer carries property coverage for the building.
Turnover	Seller returns the annex broom-clean, removes inventory and temporary equipment by 6:00 p.m. CT July 28, and delivers keys/cards; no holdover right.

EXHIBIT B-2 | Available non-price responses

Seller may make available the Polar and Northline source files, provide a single escorted pre-closing access window for buyer consultants, assign any transferable roof contractor workmanship warranty without representation as to transferability, and consider a targeted cure or escrow only in a signed package. These are options, not promises.

EXHIBIT C | Polar Mechanical Refrigeration Assessment (Apr. 24, 2026)

Scope: visual inspection and operating review of accessible components only. Polar did not perform destructive testing, pressure testing, refrigerant analysis, code review, or an assessment of non-accessible piping. Costs are planning allowances, not bids.

Finding category	Report wording	Amount / qualification
Observed condition	Corrosion and seepage were observed at three brine isolation-valve assemblies in the south machine room. System was operating at time of visit.	No leak-rate or remaining-life conclusion.
Immediate recommendation	Replace the three observed assemblies and reinsulate adjacent disturbed pipe.	Planning allowance $145,000; excludes concealed conditions, abatement, controls integration, and downtime.
Further investigation	Before work, verify pipe wall thickness and insulation condition at opened locations.	Could change scope; not priced.
Future recommendation	Consider a system-wide valve modernization plan in the next capital cycle.	Not identified as immediate work; no project estimate.

EXHIBIT D | Northline Roof Consulting Excerpt (Apr. 26, 2026)

Scope: visual walkover of accessible roof areas; no moisture scan, core cuts, deck testing, or destructive investigation. This is a condition opinion, not a roof warranty or bid.

Finding category	Report wording	Amount / qualification
Observed condition	Localized seam splits and flashing deterioration were observed in roughly 12,000 square feet of the north membrane field. No active interior leak was observed during the visit.	Conditions may be weather-dependent.
Immediate recommendation	Perform localized seam/flashing repairs within 12 months and inspect after severe weather.	Budgetary allowance $95,000; excludes wet insulation, deck repair, mobilization changes, and taxes.
Lifecycle observation	Estimated remaining useful life: 3-5 years; plan for future membrane replacement.	Planning range $365,000; not a present repair directive or bid.

EXHIBIT E | Buyer Correspondence and Call Notes

May 4, 2026 | Underhill asset manager email: “We are assessing whether the roof and refrigeration items need a credit in the purchase price before we can finalize our closing model.”

May 6, 2026 | Eamon Kristiansen call note: Eamon told Underhill’s deal lead, “we’ll make the report items right.” He recorded that he meant the parties would address documented items; no scope, amount, remedy, seller authority, or signed amendment was discussed or confirmed.

May 8, 2026 | Underhill finance email: “Our Indiana financing team needs the consultant files and a clean statement of any seller contribution. Please separate roof from refrigeration and show the proposed treatment at closing.” No lender name, lender instruction, consultant report, or underwriting condition was attached.

May 11, 2026 | Underhill deal lead email: “We need a $780,000 credit to stay on the May 29 closing path: $380,000 refrigeration reserve, $250,000 roof reserve, and $150,000 purchase-price re-trade.”

May 12, 2026 | Call note: buyer asked whether “credit” could “show on the closing statement” if its lender required it. Buyer also asked for a consultant access window and the roof warranty file. The deal lead said the team needed an answer on Thursday. No person said a lender had ordered a credit.

EXHIBIT E-2 | Demand reconciliation

Buyer label	Requested amount	Character as stated
Refrigeration reserve	$380,000	Buyer-requested amount; not an accepted liability.
Roof reserve	$250,000	Buyer-requested amount; not an accepted liability.
Purchase-price re-trade	$150,000	Buyer-requested amount; not an accepted liability.
Aggregate demand	$780,000	Buyer describes the aggregate as a “credit.”

Record observation: the May 4 use of “credit in the purchase price” differs from the May 12 question about a contribution “on the closing statement.”

EXHIBIT F | Inglewood Board Authority Record (May 13, 2026)

Purpose: call authority for May 14. This record supersedes informal broker messaging as an internal authorization record; it does not amend the Purchase Agreement.

Subject	Authority / limitation
Maximum aggregate seller exposure	Up to $240,000 total, only for a documented package tied to the reported immediate valve scope and localized roof repair scope. Seller-paid work, escrow, and any closing credit count toward one cap; no stacking or double recovery.
Broker may discuss	Report files, one escorted consultant-access window, transferable-warranty records, buyer's requested mechanics, and a conditional package. Eamon may not bind Seller.
Required conditions	Executed annex agreement at or before a material economic concession; signed amendment; Buyer release of the addressed report items; no warranty or future-performance assurance; unchanged May 29 closing unless Board approves otherwise.
Approvals	Reina and Inglewood Board approve economics and annex changes; Jelena Demirci approves credit terminology, compliance review, and final amendment package; Illinois counsel handles Illinois real-estate documents and release language; tax adviser / qualified intermediary handles 1031; Buyer and its lender confirm permitted closing-statement treatment.
Offer timing	Any enhanced package may be offered only as a written, all-terms package expiring 5:00 p.m. CT on Friday, May 15, 2026; if not accepted, the existing agreement remains in force without the enhanced remedy.

EXHIBIT G | Compliance Routing Note (May 12, 2026)

Federal: the May 25 identification date is the seller's stated federal 1031 timing milestone. Tax adviser and qualified intermediary, not the broker, must confirm identification and exchange consequences of any amendment or closing-statement item.

Illinois: the real estate is in Joliet, Illinois. Illinois counsel should prepare or approve any amendment, annex possession/use agreement, property-condition release, and closing documentation affecting the Illinois property.

Indiana: Underhill's deal team and financing activity are based in Indiana. That location may explain who requests lender materials or a closing-statement format; it does not by itself determine the governing law for the Illinois real estate. Buyer and lender must confirm their financing requirements.

Jelena Demirci: do not use "credit" in a counterproposal unless its mechanism is expressly defined as either a purchase-price reduction or a seller contribution shown at closing. Do not use it as a shorthand for both.